

From : info@ethichawks.co.za
To : <jason.whyte@deneys.co.za>,<olebogeng.motlhaping@deneys.co.za>
Cc : <jason.whyte@deneys.co.za>,<olebogeng.motlhaping@deneys.co.za>
Subject : RE: NOTICE OF FILING: Case No. 2026-066952 – TERMINATION OF
NEGOTIATION AND COMMENCEMENT OF ENFORCEMENT [IMAN-
CPT_MATTERS.FID2264505]
Date : 03 Jul 2026 10:31

Dear Ms Barker,

I acknowledge receipt of your correspondence dated 03 July 2026.
In response to your queries, please note the following:

Confirmation of Intent: I confirm that I intend to proceed with the revised Notice of Motion as transmitted on 19 June 2026.

Status of Filing: The Notice of Motion and Founding Affidavit are finalized and currently sit as a completed draft within the Court’s electronic filing portal. However, I am currently unable to finalize the submission due to persistent technical failures within the Court’s online system.

To demonstrate that this is a system failure and not a lack of diligence on my part, I have attached a screenshot of the current portal status. As you can see, the item is stuck in "Draft Items" and is not registered as "Awaiting Registrar Approval." As you are aware from my OCJ Closure Report and subsequent communications with the OCJ, the Court has formally admitted to systemic electronic notification and portal failures

Once the system accepts the upload, I will provide you with the stamped copies and relevant filing details immediately. I remain committed to progressing this matter as expeditiously as the Court’s administrative capacity allows.

Yours Professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)

--- On Fri, 03 Jul 2026 08:19:31 +0200 Frances.Barker@deneys.co.za wrote ---

Dear Mr Matthee

We refer to your correspondence of 19 June 2026, in which you gave notice of the termination of settlement negotiations and attached a revised Notice of Motion in the above matter, indicating your intention to remove the application from the urgent track and to enrol it afresh on the Ordinary Opposed Motion Roll in terms of Rule 6 of the Uniform Rules of Court.

So that we may advise our clients and respond appropriately, we should be grateful if you would clarify the following two points:

- 1 Please confirm whether you intend to proceed with the revised Notice of Motion attached to your correspondence of 19 June 2026.
- 2 If you do intend to proceed, please confirm whether the Notice of Motion and Founding Affidavit have been duly served and filed with the Registrar in accordance with the Uniform Rules of Court, and provide the relevant filing details.

We look forward to your prompt response.

Kind regards

Frances Barker | Associate

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Advisory: If our bank account details change, we will notify you by phone or in person, but never by email. Please always verify any change in our banking details by oral communication. Be suspicious of emails from unknown or external senders and be alert to impersonation attempts to redirect funds inappropriately. Always check the sender's email address.

From: Wilbur Matthee <info@ethichawks.co.za>

Sent: 19 June 2026 16:31

To: Jason Whyte <jason.whyte@deney.co.za>; Frances Barker

<Frances.Barker@deney.co.za>; Olebogeng Motlhaping

<Olebogeng.Motlhaping@deney.co.za>

Cc: ferfam.bruno@gmail.com; lebohang.mpumlwana@afrocentrichealth.com;

geraldvanwyk@afrocentrichealth.com; alice@aliceleroux.co.za; munisinf@global.co.za

Subject: NOTICE OF FILING: Case No. 2026-066952 – TERMINATION OF NEGOTIATION AND COMMENCEMENT OF ENFORCEMENT

Importance: High

Mr. Whyte,

1.I refer to your undertaking that your firm would provide a substantive response by close of business today, 19 June 2026.

2.It is now 16:30. No substantive framework for resolution has been received.

3. Your failure to honor this commitment constitutes a material breach of our engagement. It is now evident that your firm's reliance on tactical delays and the orchestration of an eleventh-hour "game of chicken" was designed exclusively to frustrate this process and the administration of justice.

4.I record that you have been repeatedly reminded of the gravity of these proceedings, particularly regarding the expectation of conduct commensurate with judicial oversight a standard you have failed to meet. Your persistent stalling, despite being fully appraised of the sensitivity and urgency of this matter, constitutes evidence of bad faith.

NOTICE TO THE BOARD OF DIRECTORS / EXECUTIVE LEADERSHIP:

5. This communication is directed to the Board of Directors of the Respondent entity to ensure you are fully appraised of the conduct of your legal representatives.

6. The failure of your legal team to act in good faith and their persistent use of procedural attrition has forced the termination of all settlement negotiations. Be advised that this conduct is now documented as part of the formal evidence of institutional malice, which will be presented to the High Court and the Parliamentary oversight committees.

7. You are hereby placed on formal notice of the following:

7.1 The Calderbank offer previously extended is formally withdrawn, effective immediately. There will be no further negotiation.

7.2 Having exhausted all avenues for amicable resolution, I have initiated the enforcement phase. Attached herewith is the Notice of Motion in Case No. 2026-066952, which is formally served upon you as an interested party.

8.I will served this notice directly upon the Office of the Acting Chief Registrar to ensure immediate enrolment on the Ordinary Opposed Motion Roll.

NOTE TO THE REGISTRAR / PORTAL CLERK:
RE: ENROLMENT ON THE ORDINARY OPPOSED MOTION ROLL – CASE NO: 2026-066952

The attached, refined Notice of Motion (Section 162 Application) is filed under the existing Case No: 2026-066952. Due to institutional system anomalies, the Applicant is serving this notice directly on the Office of the Acting Chief Registrar to prevent further procedural obstruction.

The Applicant is enrolling the matter afresh on the Ordinary Opposed Motion Roll in terms of Uniform Rule 6. Kindly retain the existing case number for tracking purposes, or advise if the system architecture requires a new tracking identifier.

Please note that this matter is under the direct oversight of Justice Dustan and the presiding Judge. All respondents and their legal representatives are copied herein to maintain a transparent, binding audit trail.

9. The Parliamentary Forensic Evidence Bundle, documenting the full extent of this systemic institutional malice, is being transmitted to the Speaker of the National Assembly and the relevant parliamentary representative on Monday morning, 22 June 2026.

10. The period of attrition has concluded. The matter is now in the hands of the High Court and legislative oversight committees.

Be guided accordingly.

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